

The Constitution of Pakistan

History, Structure, Salient Features, and Governing Philosophy of the 1973
Constitution

Pakistan Legal Reference Series

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1. Historical Background

Pakistan has had three constitutions since independence in 1947:

1. **1956 Constitution** — Pakistan's first, establishing a parliamentary republic; abrogated in 1958 following the imposition of martial law.
2. **1962 Constitution** — introduced by President Ayub Khan, establishing a presidential system with a system of indirect election (Basic Democracies); abrogated in 1969.

3. **1973 Constitution** — adopted by the first directly elected National Assembly after the loss of East Pakistan (Bangladesh) in 1971, under Prime Minister Zulfikar Ali Bhutto. It was passed unanimously (with near-consensus across parties) on **10 April 1973** and came into force on **14 August 1973**, Pakistan's Independence Day. It remains in force today, though heavily amended, and is widely regarded as the country's most durable and broadly legitimate constitutional document because of the cross-party consensus behind its original adoption.

The document draws on the **Objectives Resolution of 1949**, moved by Prime Minister Liaquat Ali Khan, which articulated the founding vision that sovereignty belongs to Allah, and that the State would function as a democracy grounded in Islamic principles of equality, tolerance, and social justice while safeguarding the legitimate interests of minorities. The Objectives Resolution was made a substantive (not merely preambular) part of the Constitution through **Article 2-A**, inserted by the 8th Amendment in 1985.

2. Salient Features

2.1 Federal, Parliamentary Republic

Pakistan is a **Federation** of four Provinces, the Islamabad Capital Territory, and other territories, with a **parliamentary form of government** — executive authority is exercised by a Prime Minister and Cabinet who are collectively responsible to the directly elected National Assembly, while the President is a largely ceremonial Head of State (Article 41, Article 48).

2.2 Written and Rigid, but Amendable

The Constitution is a single written document with a formal amendment procedure (Articles 238–239) requiring a two-thirds majority in each House — making it harder to change than ordinary law, but not unamendable, as evidenced by 27 amendments to date.

2.3 Islamic Character

- Islam is the State religion (Article 2).
- The Objectives Resolution is a substantive part of the Constitution (Article 2-A).
- No law can be repugnant to the Injunctions of Islam (Article 227), reviewed by the **Council of Islamic Ideology** and the **Federal Shariat Court**.
- The Head of State and Head of Government must be Muslim (Articles 41, 91).

2.4 Fundamental Rights, Judicially Enforceable

Chapter 1 of Part II (Articles 8–28) guarantees justiciable fundamental rights, enforceable directly through the High Courts (Article 199) and, for matters of public importance, through the Supreme Court's Constitutional Benches or the Federal Constitutional Court following the 26th and 27th Amendments.

2.5 Principles of Policy

Chapter 2 of Part II (Articles 29–40) sets out **non-justiciable** directive principles guiding the State’s socio-economic policy — not enforceable in court, but intended to guide legislation and governance.

2.6 Independent Judiciary (with evolving structure)

The Constitution establishes a hierarchy of courts — subordinate courts, High Courts, the Federal Shariat Court, and (since 2025) both the Supreme Court’s Constitutional Benches and the new **Federal Constitutional Court**. Judicial independence has been a recurring point of constitutional debate, especially following the 26th (2024) and 27th (2025) Amendments, which shifted significant power over judicial appointments and constitutional interpretation toward the executive and Parliament.

2.7 Bicameral Legislature

- **National Assembly:** directly elected on the basis of adult franchise, representing population; normal term 5 years.
- **Senate:** indirectly elected by Provincial Assemblies (plus other specified electoral colleges), giving each Province **equal representation** regardless of population — a structural safeguard for smaller provinces in a federation where Punjab has by far the largest population.

2.8 Distribution of Powers (Post-18th Amendment)

Since the 18th Amendment (2010) abolished the Concurrent Legislative List, subjects not explicitly reserved to the Federal Government (via the Federal Legislative List, Fourth Schedule) fall to the Provinces — making Pakistan considerably more decentralized than under the original 1973 text.

2.9 Emergency Powers

Part X (Articles 232–237) allows the President, on the advice of the Federal Government, to proclaim an emergency in case of war, external aggression, or internal disturbance beyond the power of a Provincial Government to control, with defined limits on how long fundamental rights may be suspended.

2.10 Supremacy of the Constitution

Article 6 declares that any person who abrogates, subverts, suspends, or holds in abeyance the Constitution by use of force, or conspires to do so, is guilty of **high treason** — a provision aimed at deterring military coups, though Pakistan’s history has nonetheless included four periods of martial law (1958, 1969, 1977, 1999) prior to this article’s later strengthening.

3. The Three Organs of the State

Organ	Constitutional Basis	Core Function
Legislature	Part III (Majlis-e-Shoora)	Makes law; National Assembly + Senate
Executive	Part III, Chapter 3 & 4	President (Head of State) + Prime Minister/Cabinet (Head of Government)
Judiciary	Part VII	implement law and policy Supreme Court, Federal Constitutional Court, High Courts, Federal Shariat Court, and subordinate courts interpret law and adjudicate disputes

4. Structure at a Glance

The Constitution consists of:

- A **Preamble**, incorporating the spirit of the Objectives Resolution.
- **12 Parts**, divided into Chapters (see the companion “Key Articles” document for a full breakdown).
- **7 Schedules** covering technical/administrative detail (oaths, legislative lists, salaries, protected laws).
- **280+ Articles** as currently numbered after 27 amendments (with several “lettered” insertions such as 2-A, 8A→10A, 25-A, 9-A, 63-A, 175-A, 184, 191-A, 199(1A), 202-A, 243(7)–(9), etc.).

5. Timeline of Major Constitutional Development

Year	Event
1947	Independence; Government of India Act, 1935 used as interim constitution
1949	Objectives Resolution adopted
1956	First Constitution promulgated
1958	First martial law; 1956 Constitution abrogated
1962	Second Constitution (presidential system)
1969	Second martial law; 1962 Constitution abrogated
1971	Separation of East Pakistan (Bangladesh)

Year	Event
1973	Present Constitution adopted (10 April) and enforced (14 August)
1977	Third martial law (General Zia-ul-Haq); Constitution held in abeyance
1985	8th Amendment restores and substantially recasts the Constitution, including Article 2-A and presidential discretionary powers
1997	13th Amendment removes presidential dissolution power
1999	Fourth period of military rule (General Pervez Musharraf)
2002–2003	Legal Framework Order and 17th Amendment partially re-empower the President
2010	18th Amendment — most extensive reform, restoring parliamentary supremacy and devolving powers to provinces
2018	25th Amendment — FATA merged into Khyber Pakhtunkhwa
2024	26th Amendment — major judicial restructuring, new environmental right
2025	27th Amendment — Federal Constitutional Court created; military command structure overhauled

6. Why the Constitution Matters Practically

Every statute discussed elsewhere in this reference series — the Pakistan Penal Code, the Family Courts Act, the Companies Act, provincial rent and labour laws — draws its legal validity from the Constitution. Under **Article 8**, any law (existing or future) that is inconsistent with a fundamental right is, to the extent of that inconsistency, **void**. This is why constitutional litigation (through Article 199 High Court petitions, and now the Federal Constitutional Court) is often the final avenue through which the validity of ordinary criminal, civil, or commercial legislation is tested.

Disclaimer: This document offers a general, educational overview of the Constitution's structure and history. It is not a substitute for the official Gazette text or for advice from a licensed constitutional law practitioner, particularly given the significant and still-contested changes introduced by the 26th and 27th Amendments.